

Defendant's counsel is ordered to prepare a proposed order conforming to the tentative ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

7. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

***HEARING ON MOTION IN RE: FOR LEAVE TO AMEND SECOND AMENDED COMPLAINT TO FILE**

THIRD AMENDED COMPLAINT

FILED BY: COLEMAN, KAREN

TENTATIVE RULING:

Plaintiff Karen Coleman's Motion for Leave to File a Third Amended Complaint is **denied**. The Court sustained Defendant's Demurrer and granted Defendant's Motion to Strike the Second Amended Complaint on January 23, 2026. Plaintiff in *propria persona* filed a self-styled "Notice of Timely Filing Third Amended Complaint on February 2, 2026", which is late. Cal. Code of Civ. Proc. § 1005(b) requires service of this Motion no later than 16 court days before the hearing. Sixteen court days before February 18, 2026 is January 23, 2026. Plaintiff's filing is 10 days late.

Furthermore, Plaintiff's Motion contains several procedural irregularities. For example, Plaintiff's motion fails to comply with the Notice Requirements, did not to seek leave to amend her complaint, and fails to provide a Memorandum of Points and Authorities. Plaintiff did not file a Proof of Service form indicating that Defendants have been served. Plaintiff also does not include a proposed Copy of a Third Amended Complaint. These procedural irregularities do not provide Defendants with due process, in that there is no record that they are provided with timely notice an opportunity to be heard. As such, this Motion fails.

The Court has admonished Plaintiff that she is required to follow Court Rules and the Rules of Civil Procedure, even though she represents herself. The Court has also advised Plaintiff to seek assistance of Counsel or the resources of the law library so that she could properly prepare and serve motions in according to the rules. She has not complied with these admonitions. Unfortunately, the Court must **deny** the relief she requested by this Motion. Plaintiff's Motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT FILED BY DEFENDANT

UNIVERSAL PROTECTION SERVICE, LP

FILED BY: UNIVERSAL PROTECTION SERVICE, LP

TENTATIVE RULING:

Before the Court is Defendant Universal Protection Service, LP's Demurrer to Plaintiffs' First Amended Complaint. Universal Protection Service, LP is doing business as Allied Universal Security Services.

Defendant Universal Protection Service, LP's Demurrer **sustained without leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of

February 10, 2024, involving Plaintiffs' son – Christopher Cannedy. At that time, Andres Hernandez was employed by Defendant BJ's Restaurant, located in Brentwood, California. (¶ 6.) After his shift, Mr. Hernandez engaged in heavy drinking of alcohol behind the restaurant with other BJ's employees. (¶ 7.) He and his fellow employees drank for several hours. (*Ibid.*)

Defendant Allied provided security to the Beautiful Streets of Brentwood Shopping Center ("Mall") wherein the BJ's restaurant was located. (¶ 13.) Public intoxication is a misdemeanor. (*Ibid.*) The drinking behind the BJ's restaurant was a nearly nightly occurrence. (*Ibid.*) It is alleged that Allied should have been aware of this practice but took no steps to interrupt or prohibit the activity. (*Ibid.*)

On the morning of February 10, Mr. Hernandez left the BJ's restaurant parking lot with a blood alcohol level of 0.165%. (¶ 14.) He proceeded to enter State Route 4 going the wrong way and collided head on with Christopher Cannedy. (*Ibid.*) Both drivers were killed in the accident. (*Ibid.*)

Plaintiffs filed their complaint on October 11, 2024. Defendant Universal filed a demurrer to the Complaint, which was sustained with leave to amend. Thereafter, the Plaintiffs filed the operative First Amended Complaint on July 18, 2025. The FAC alleged three causes of action against BJ's: (1) Respondeat Superior; (2) Negligent Hiring/Supervision; and (3) Unfair Business Practices – B&P 17200 et seq. It alleges a single cause of action against Universal: (4) Aiding and Abetting Unfair Business Practices.

BJ's filed a demurrer to the FAC which is heard concurrently with this matter – see line 10.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Analysis

As outlined in full at line 10 of these Tentative Rulings, the Court sustained BJ's demurrer to the third cause of action for Unfair Business Practices **without** leave to amend.

It is well established that "there can be no aiding and abetting liability absent the commission of an underlying tort." (*Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 343 fn. 7 citation omitted.) As the Court found the FAC failed to state a cause of action for Unfair Business Practices, there cannot be a cause of action for aiding and abetting Unfair Business Practices.

Conclusion

As such, Defendant Universal's demurrer to the fourth cause of action is **sustained without leave to amend**.

9. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT FILED BY
DEFENDANT UNIVERSAL PROTECTION SERVICE, LP
FILED BY: UNIVERSAL PROTECTION SERVICE, LP
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Before the Court is Defendant BJ's Restaurant & Brewhouse, Inc.'s Demurrer to Plaintiffs' First Amended Complaint.

Defendant BJ's Demurrer is **sustained with partial leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of February 10, 2024, involving Plaintiffs' son – Christopher Cannedy. At that time, Andres Hernandez was employed by Defendant BJ's Restaurant, located in Brentwood, California. (¶ 6.) After his shift, Mr. Hernandez engaged in heavy drinking of alcohol behind the restaurant with other BJ's employees. (¶ 7.) He and his fellow employees drank for several hours. (*Ibid.*)

"Miguel," a manager of BJ's, had a policy of permitting employees to drink during their shifts and to drink for up to 30-minutes after their shifts behind the restaurant. (¶ 8.) The 30-minute rule was not enforced. (*Ibid.*) The location of the drinking was such that it would be readily observable by anyone visiting the restaurant, including any corporate representative or officer visiting the restaurant. (¶ 9.) BJ's had a corporate policy that recognized the risks of permitting employees to drink at work or to drink in excess. (¶ 10.)

Defendant Allied provided security to the Beautiful Streets of Brentwood Shopping Center ("Mall") wherein the BJ's restaurant was located. (¶ 13.) Public intoxication is a misdemeanor. (*Ibid.*) The drinking behind the BJ's restaurant was a nearly nightly occurrence. (*Ibid.*) It is alleged that Allied should have been aware of this practice but took no steps to interrupt or prohibit the activity. (*Ibid.*)

On the morning of February 10, Mr. Hernandez left the BJ's restaurant parking lot with a blood alcohol level of 0.165%. (¶ 14.) He proceeded to enter State Route 4 going the wrong way and collided head on with Christopher Cannedy. (*Ibid.*) Both drivers were killed in the accident. (*Ibid.*)